

		"A petition for a release order shall be verified and shall allege all of the following: "(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition. "(b) The county in which the claim of lien is recorded. "(c) The book and page or series number of the place in the official records where the claim of lien is recorded. "(d) The legal description of the property subject to the claim of lien. "(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired. "(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found. "(g) Whether an action to enforce the lien is pending. "(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien." Petitioner also fails to cite any statutory or case law authority to support the petition or any of the assertions made therein. Finally, it appears the petition may be moot as respondent Gui Xing Chen filed a declaration stating he recorded a release of the lien at issue. A copy of that release is attached to his declaration. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice of this ruling.
8.	<i>Squires Lumber Company vs. McGee Contracting Inc.</i> 2023-01300636	Before the court is the motion of plaintiff and judgment creditor Squires Lumber Company (Creditor) for order of assignment of payments, for order restraining judgment debtor from assigning or otherwise disposing of the right to payment, and for order compelling accountings. As more fully set forth below the motion is DENIED WITHOUT PREJUDICE.

		By this motion, Creditor seeks an order (1) directing payments by Jephtha Trucks LLC or out of Jephtha Trucks LLC's account to defendant and judgment debtor Jason McGee (Debtor) be assigned to Creditor, (2) requiring Debtor to turnover to Creditor any payments made by Jephtha Trucks LLC or out of Jephtha Trucks LLC's accounts to Debtor, (3) restraining Debtor and anyone acting on his behalf from encumbering, assigning, disposing or spending any portion of Debtor's payments from Jephtha Trucks LLC or out of Jephtha Truck LLC's accounts, and (4) compelling Debtor to provide, file, and serve a monthly accounting. An assignment order is a court order assigning to the judgment creditor the judgment debtor's right to payments due from a third person. Assignment orders are authorized by Code of Civil Procedure section 708.510 et seq. The statutory provisions regarding assignment orders are subject to strict construction. (<i>Landstar Global Logistics, Inc. v. Robinson & Robinson, Inc.</i> (2013) 216 Cal.App.4th 378, 390.) Specifically, Code of Civil Procedure section 708.510, subdivision (a), provides, "the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments: [¶] (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. [¶] (2) Rents. [¶] (3) Commissions. [¶] (4) Royalties. [¶] (5) Payments due from a patent or copyright. [¶] (6) Insurance policy loan value." Here, Creditor has not established any right to payment that can be assigned. Creditor has shown a significant volume of random payments or transfers from Jephtha Truck LLC's bank account to Debtor that total a considerable sum. Creditor speculates Debtor, as the only member of Jephtha Truck LLC, is making these transfers as distributions from the LLC or compensation for services render (as opposed to wages that could be garnished). That, however, does not establish the existence of a right to payment that may be subject to an assignment order. Creditor appears to be seeking a charging order against Debtor's interest in Jephtha Trucks, LLC. Code of Civil Procedure section 708.310 et seq. authorizes a charging order that requires a judgment debtor's interest in an LLC to be applied toward satisfaction of a judgment. Indeed, a
--	--	---

		lien on a judgment debtor's interest in an LLC is created by service of a notice of motion for charging order on the judgment debtor and on all members or the LLC. (Code Civ. Proc., § 708.320.) There are a number of supplemental orders that can be made with a charging order, including appointment of a receiver. The court, however, has not been convinced an enforceable assignment order can be made in this case on the showing that has been made. Accordingly, the motion is DENIED WITHOUT PREJUDICE to a new motion making a sufficient showing or a different motion seeking a different form of order to aid in enforcing the judgment. Creditor's counsel is ordered to give notice of this ruling.
9.	<i>Hoang vs. Villageway Management, Inc.</i> <i>2021-01218583-</i>	Before the court are two motions filed by plaintiff Nam Neil Hoang (Plaintiff): (1) the motion to strike or tax costs requested by defendants Villageway Management, Inc., Country Community Association, Michelle Morand, Jim Pijloo, and Shayaan Vasi (collectively, Defendants) for trial court proceedings, and (2) the motion to strike or tax costs requested by Defendants for appellate court proceedings. As more fully set forth below, the motion regarding the trial court costs is DENIED, and the motion regarding the appellate court costs is GRANTED. <u>Motion No. 1: Trial Court Costs</u> Defendants filed a memorandum of costs after entry of judgment in the superior court matter requesting \$22,575.94 in costs. (ROA 460, 462.) As judgment was entered on May 3, 2024, and the memorandum of costs was filed on May 17, 2024, it is timely. Plaintiff had until 15 days after service of the memorandum to file a motion to strike or tax the costs. (Cal. Rules Ct. rule 3.1700(a).) Instead of filing the motion in a timely manner, Plaintiff waited 21 months beyond the filing deadline to file the motion. (ROA 514.) As the motion is untimely, it must be DENIED. (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 289 ["The 'failure to file a motion to tax constitutes a waiver of the right to object'"].) In addition and in response to Plaintiff's argument, the court notes the filing of a notice of appeal does not deprive the trial court of jurisdiction to award costs to the prevailing party. Costs are a collateral matter not impacted by any stay that may arise from an appeal from the judgment. (<i>Bankes v. Lucas</i> (1992) 9 Cal.App.4th 365, 368-69.) A judgment on the appeal also has been entered affirming the ruling on the summary judgment motion, and jurisdiction